

Court No. - 58

Case :- WRIT - C No. - 21505 of 2017

Petitioner :- Agra Development Authority

Respondent :- Satyendra Bhushan Chakrawarti And 2 Others

Counsel for Petitioner :- Jagannath Maurya

Counsel for Respondent :- Ashutosh Srivastava

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up as fresh on 22.5.2017.

Order Date :- 17.5.2017

Mini

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Respondent :- Satyendra Bhushan Chakrawarti And 2 Others

Counsel for Petitioner :- Jagannath Maurya

Counsel for Respondent :- Ashutosh Srivastava

Hon'ble Saumitra Dayal Singh,J.

This writ petition has been filed against the order of Electricity Consumer Grievance Redressal Forum dated 23.7.2016 in Case No. 21A of 2016 whereby the petitioner has been directed to remove the prepaid meter installed in the premises of the apartment owner at ADA Hights, Tajnagari, Phase-II and, thereafter to install such meter only after taking such permission from this apartment owner.

Apparently, there is no remedy of appeal under available to the licensee or a person standing in that position as that remedy is available to the consumer, under para 7.10. of the Electricity Supply Code, 2005. The petitioner is not a consumer. Therefore, it appears that remedy of appeal is not available to the petitioner.

On merits, the matter does require consideration inasmuch as the redressal forum has allowed for installation of prepaid meter but has at the same time directed for un-installation of the existing prepaid meter on account of lack of prior permission. It appears to be over technical view.

Issue notice to respondent no.1 returnable at four weeks.

Sri Ashutosh Srivastava has accepted notice on behalf of respondent no.2.

Respondents may file counter affidavit in the meantime.

List this matter on 13.7.2017.

Till the next date of listing, the operation and effect of the impugned award dated 23.7.2016 shall remain stayed.

Order Date :- 22.5.2017

Mini

Court No. - 28

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Petitioner :- Agra Development Authority

Respondent :- Satyendra Bhushan Chakrawarti
And 2 Others

Counsel for Petitioner :- Jagannath Maurya

Counsel for Respondent :- Ashutosh Srivastava

Hon'ble Mahesh Chandra Tripathi,J.

List after one month. Office is directed to submit report regarding service of respondent no.1.

Interim order, if any, is extended till the next date of listing.

Order Date :- 13.7.2017

A. Pandey